Hanafi vs Hanbali

Paper 2 syllabus comparison

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Your two-school choice is valid. For Units 2.1–2.4, Cambridge permits two Sunni madhhabs. Unit 2.5 also requires understanding their sources and interpretation. [1]

Section B is different: choosing these two schools does not remove the required Shi'i, Mu'tazili, Ash'ari, Sufi, Salafi and reformist perspectives in Units 2.6–2.9. [1]

How to use this booklet

• Read the syllabus audit and attribution key first.
• Follow the PDF bookmarks for worship, family, inheritance and finance.
• Check the early disagreements before using the recall list.
• Final pages contain clickable named sources.

Scope: the main syllabus-relevant comparisons, not every disagreement in Islamic law. "Hanafi" and "Hanbali" mean mainstream classical positions unless qualified. Internal opinions and modern statutes can differ.

Educational revision, not a personal fatwa. Read the whole question before selecting a comparison.

Are later jurists allowed?

What Cambridge actually specifies

Unit 2.4 says “one of the four Sunni Imams and their Madhab”; it asks for comparison of two schools. Unit 2.5 concerns derivation and interpretation. The syllabus states no first-generation cutoff and supplies no whitelist of later jurists for these comparisons. [1]

Conclusion: later authorities can document and explain a chosen school. This is not a Cambridge guarantee that every opinion of every later scholar will answer every question.

School doctrine is not every member’s opinion

Use the standard position for the main comparison. If a named scholar differs, identify it as an internal opinion or individual preference, not as the whole madhhab.

Cambridge’s June 2024 marking principles allow valid, relevant material beyond indicative content. Q4 explicitly names Ibn Taymiyyah in the Salafi discussion. That is Section B evidence, not permission to replace Section A’s two-school comparison with unrelated individual preferences. Accuracy and relevance remain essential. [40]

Three safe formulations

• **Named early opinion:** “Abu Hanifa holds X; Abu Yusuf and Muhammad hold Y.”
• **School rule documented later:** “Al-Quduri records the Hanafi rule as X.” This does not claim he invented it.
• **Individual alternative:** “Ibn Taymiyyah prefers X, unlike the standard school rule.”

Exam priority: a correct paired comparison matters more than decorative names. These notes add names where the consulted evidence supports them; they do not reconstruct every transmission chain.

Who is being attributed?

Hanafi early authorities: Abu Hanifa al-Nu'man ibn Thabit; Qadi Abu Yusuf; Muhammad ibn al-Hasan al-Shaybani. The latter two are the Sahibayn. They do not agree on every question. [37, 41, 43]

Later Hanafi jurists: al-Quduri documents school rules; al-Kasani and al-Marghinani explain them; Ibn 'Abidin's Radd al-Muhtar is a later school reference, not a first-generation opinion. His marriage discussion is identified through the study in [43].

Hanbali: Ahmad ibn Hanbal is the founder. A riwayah is a report from Ahmad; a later jurist's derived view is not automatically a direct statement by Ahmad. Ibn Qudamah and al-Hajjawi are later school authorities. "Ashab of the school" need not mean only the founder's immediate pupils. [20, 38, 42]

Maliki: Malik ibn Anas is the founder. Ibn Abi Zayd al-Qayrawani and 'Abd al-Bari al-'Ashmawi are later school expositors, not Malik's first-generation disciples. [27, 39]

Ibn Taymiyyah and Ibn al-Qayyim: later Hanbali-associated scholars whose individual preferences need separate labelling; triple divorce is a useful example. [24, 47]

Name correction: probably Muhammad **Zahid** al-Kawthari, not "Zahir". He is a later Hanafi authority, but no particular ruling is attached to him here without a checked passage. [44]

Ibn Kathir and 'Izz ibn 'Abd al-Salam: Shafi'i scholars. Relevant tafsir or legal reasoning may support an answer, but their personal positions cannot simply stand in for the Hanafi, Hanbali or Maliki rule. [45, 46]

Attribution key and limits

“Reports” does not mean “originates”. A named manual author documents a school position; a comparative author may report another school’s doctrine without personally adopting it.

Classical texts used here

Al-Quduri, Mukhtasar: purification (obligations, Sunnah actions, nullifiers); prayer times. His prayer-times section explicitly contrasts Abu Hanifa with Abu Yusuf and Muhammad. [37]

Al-Hajjawi, Zad al-Mustaqni‘: obligatory wudu parts, quoted in [20], including mouth/nose, ears, order and continuity. Ibn ‘Uthaymin comments on that text. Do not treat the website’s preferred answer as consensus.

Ibn Qudamah, ‘Umdat al-Fiqh: ablution and nullifiers. His selected account differs on ears from the later obligation rule; see the special note in the Hanafi–Hanbali guide. [38, 42]

Al-‘Ashmawi, Matn: Maliki wudu obligations and nullifiers. **Ibn Abi Zayd, al-Risala:** purification; prayer-time commentary is linked separately. Later bracketed commentary must not automatically be attributed to the original author. [27, 39, 49]

Comparative reports still labelled honestly

Muhammad Jawad Mughniyya is the named comparative reporter for many family and inheritance entries, not the founder of these Sunni rules. Such labels establish a reported school position, not a verified individual fatwa by Abu Hanifa, Malik or Ahmad. [3, 4, 5, 6, 7, 8, 14, 25, 33]

For sales, [12] cites **al-Kasani/al-Marghinani**, **al-Hattab** and **Ibn Qudamah** for the respective schools. For riba’s effective causes, [34] is **Muhammad al-Mukhtar al-Salami’s** comparative account. Page references and websites are edition-dependent; chapter/section titles are given where checked.

1. Foundations and legal method

Units 2.4–2.5

Hanafi: Imam Abu Hanifa (d. 767 CE), Kufa. Abu Yusuf and Muhammad al-Shaybani were central to the school's development.
Hanbali: Imam Ahmad ibn Hanbal (d. 855 CE), Baghdad; especially associated with Hadith transmission and his Musnad.

Revelation comes first in both

Both regard the Qur'an and Prophetic Sunnah as foundational. Neither school licenses personal preferences to override revelation.

Qiyas — analogy

Hanafi: systematic and extensive use of analogy to extend rulings to new cases through a shared effective cause ('illah).
Hanbali: accepts analogy, but is especially associated with giving transmitted evidence priority before resorting to it. Do not write "Hanbalis reject all qiyas." [21]

Istihsan — juristic preference

Hanafi: a major method: leaving an apparent analogy for a stronger legal justification, not simply choosing an easy answer.
Hanbali: not its defining method. Textual evidence and transmitted precedents are particularly prominent. Later jurists are diverse; do not assert that every Hanbali rejects every use of istihsan.

Exam line: "Both schools use revelation and interpretation, but differ in the weight and manner of using particular interpretive methods."

Sources: the distinctions to explain

Sahih and da'if Hadith

Ahmad is associated with preferring certain usable reports described as weak or mursal over unsupported personal opinion or analogy when no stronger contrary evidence exists. [21]

• This does not include fabricated reports.
• Early terminology is not identical to every later grading convention.
• It does not mean Hanafis reject every weak report or Hanbalis accept all of them.

Ijma' and the Companions

Both recognise authoritative consensus and attach importance to the Companions. Ahmad was particularly cautious about unsupported claims of consensus and valued transmitted Companion opinions. Do not reduce all later Hanbali theory to "only Companion consensus exists." [21]

Custom — 'urf

Both can recognise lawful custom, especially in transactions. Custom cannot legalise a clear prohibition. Hanafi law has a particularly developed use of custom; this is not a Hanafi monopoly.

Shared framework worth marks

• Qur'an and Sunnah are primary authorities.
• Ijtihad requires knowledge and disciplined interpretation.
• Disagreement in fiqh need not imply different religions.
• A valid comparison includes similarities and differences.

Avoid: "Hanafi = reason; Hanbali = Hadith." Hanafis also follow Hadith, while Hanbalis also reason.
Evidence anchor: Qur'an 4:59 concerns referring disputes to Allah and the Messenger.

2. Worship: performing wudu

Unit 2.1 • foundation: Qur'an 5:6

Intention (niyyah)
Hanafi — al-Quduri: Sunnah for wudu, not a condition of legal validity.
Hanbali — al-Hajjawi: required for valid ritual purification.

Sequence (tartib)
Hanafi — al-Quduri: following the prescribed sequence is Sunnah.
Hanbali — al-Hajjawi: the prescribed order is obligatory.

Continuity (muwalat)
Hanafi — al-Quduri: recommended; a long gap does not itself undo the acts already performed.
Hanbali — al-Hajjawi: obligatory; avoid an excessive interruption, judged under normal conditions.

How much head must be wiped?
Hanafi — al-Quduri: a quarter fulfils the obligation; wiping all is Sunnah.
Hanbali — al-Hajjawi: the whole head must be wiped.

Ears; mouth and nose
Hanafi — al-Quduri: wiping ears and rinsing mouth/nose are Sunnah in wudu.
Hanbali — al-Hajjawi: obligatory in the standard position. [20, 37]

Worked comparison: washing without ritual intention, out of order, with only a quarter-head wipe may meet Hanafi validity requirements but fails Hanbali requirements.

Shared rule: both wash bare feet, including ankles. One complete wash can fulfil the washing obligation; three is the Sunnah completion, not three obligatory washes.
Trap: mouth and nose are obligatory in Hanafi ghusl, although Sunnah in Hanafi wudu.

Internal difference: Ibn Qudamah's 'Umdah lists ear-wiping as Sunnah; see the dedicated note. Do not ascribe the obligation rule to every Hanbali. [38, 42]

Wudu: what invalidates it?

Ordinary skin contact with a woman
Hanafi — al-Quduri: touch alone does not invalidate wudu.
Hanbali — Ibn Qudamah: touching with desire invalidates it in the standard position; without desire it does not. Discharge has separate rules. [18, 38]

Direct hand contact with the private organ
Hanafi — al-Quduri: touching it does not itself invalidate wudu.
Hanbali — Ibn Qudamah: the relevant direct hand contact without a barrier invalidates it in the standard position. Alternative scholarly preferences must be identified. [19, 36, 38]

Eating camel meat
Hanafi — al-Quduri: does not invalidate wudu.
Hanbali — Ibn Qudamah: invalidates it, based on a specific Prophetic instruction. [3, 26, 37, 38]

Bleeding and vomiting: do not learn a false contrast
Hanafi — al-Quduri: flowing blood beyond the wound site and a mouthful of vomit invalidate wudu.
Classical Hanbali — Ibn Qudamah: a large amount of relevant impure discharge, including blood or vomit, can invalidate it. The tests are not identical. Do not replace this classical rule with an unnamed later preference. [3, 26, 37, 38]

Explain why they differ

Different interpretations of Qur'an 5:6 and different reconciliation of reports produce different legal thresholds. Avoid "one school ignores the Prophet."

Best recall examples: intention, order, continuity, head wiping, touching with desire and camel meat.

A real Hanbali internal difference

Wiping ears in wudu

Al-Hajjawi, Zad al-Mustaqni': includes ears in obligatory head-wiping. This is the standard obligation rule used in the main comparison, quoted in [20].

Ibn Qudamah, 'Umdat al-Fiqh: lists wiping ears among the Sunnah actions in the consulted text. Do not attach his name indiscriminately to the opposite obligation rule. [38]

Ahmad's transmitted opinions: the source quoting al-Khallal, as cited by Ibn Qudamah in al-Mughni 1:90, reports validity when ears are omitted. Another account, transmitted through Harb and cited by Ibn Hubayrah, treats wiping them as obligatory. These are different reports, not evidence that every Hanbali has one identical view. [42, 48]

What this changes in an exam

Safe: "The standard Hanbali rule presented by al-Hajjawi requires ear-wiping, whereas Hanafi law treats it as Sunnah; Hanbali reports and jurists are not unanimous."

Unsafe: "Ahmad, every companion and Ibn Qudamah all said ears are obligatory."

Terminology: a founder's qawl is his opinion; a riwayah is an attributed report; a later jurist may select or derive a view. A mu'tamad position is relied upon within a school, not necessarily every member's view or the founder's only report.

Another important example

For an explicit threefold divorce in one sitting, the mainstream classical rule counts three. **Ibn Taymiyyah and Ibn al-Qayyim** defend counting one. Present that as their labelled alternative, not "the Hanbali school says one." [24, 47]

Daily prayer times and combining

Fajr: same valid window, different preferred time
Both: true dawn to sunrise.
Hanafi — al-Quduri: prefers isfar, when dawn light is clearer.
Hanbali — Ibn Qudamah: prefers earlier prayer while still dark.
This is a preference within the period, not permission to pray before dawn. [37, 38]

'Asr: the major timing difference
Abu Hanifa's well-known position: additional shadow = twice the object's height.
Ahmad / Hanbali rule: additional shadow = once the object's height.
Add the noon shadow in both. For a 1 m object with a 0.2 m noon shadow: 2.2 m versus 1.2 m. Abu Yusuf and Muhammad hold once plus noon shadow, as al-Quduri records. [17, 37]

Maghrib: both begin at sunset. Do not import a Sunni–Shi'i sunset-delay comparison.

True combining — jam'

Hanafi: normally only the specified Hajj combinations at 'Arafat and Muzdalifah, under their conditions.
Hanbali: permits qualifying combinations for travel, illness and recognised hardship; qualifying weather concessions have specific details. [9, 11]

Jam' suri: first prayer at the end of its own time, second at the start of its own time. This is the usual Hanafi alternative outside Hajj.
Only pairs: Zuhr + 'Asr; Maghrib + 'Isha. Never Fajr.
Do not confuse: combining (jam') with shortening (qasr).

Jam' attribution: school rules are reported by the Dorar compilers [9] and Hanafi specialists [11]; no unverified founder quotation is claimed.

Friday prayer — Jumu‘ah

Two strong comparisons

Minimum congregation

Abu Hanifa and Muhammad: three besides the imam; Abu Yusuf: two. [41]
Hanbali: standard classical position is forty qualifying settled resident men, including the imam. Alternative opinions exist within the school. [10, 41]

Beginning of valid time

Hanafi: after the sun passes the zenith, in the Zuhr period.
Hanbali: pre-zenith performance permitted; al-Khiraqi and Ibn Qudamah prefer the sixth hour. The earliest point is disputed. Do not claim the schools have identical time rules. [10]

Common conditions and purposes

Both recognise Friday prayer’s sermon and two congregational rak‘ahs. Attendance is obligatory for qualifying adult Muslim men, with recognised exemptions such as illness and travel.

For daily prayers, learn shared conditions too: purification, removal of relevant impurity, covering the ‘awrah, facing the qiblah, prayer within its valid time, and intention.

Evaluation worth writing

“Hanafi law can make Friday prayer possible for a smaller community; Hanbali law gives more flexibility in timing. The school which is stricter depends on the issue.”

Exam trap: both numbers are qualified legal positions, not a universal Islamic consensus. Neither a tiny gathering nor a congregation of forty automatically satisfies every other condition.
Evidence anchor: Qur’an 62:9 commands responding to the Friday call and leaving trade.

School-level reports: counts/time qualifications are reported by Dorar [10]. Do not attach every alternative count directly to Ahmad.

3. Family life: marriage

Unit 2.2

Guardian — wali
Abu Hanifa — as reported by al-Marghinani: an adult, sane woman can contract her own marriage; a wali is not a universal validity condition. Compatibility (kafa'ah), appropriate mahr and guardians' rights qualify the rule.
Hanbali — Mughniyya reports: a wali is required for a valid marriage contract.
Requiring a guardian does not mean the bride's wishes are irrelevant. Classical rules distinguish legal capacity and circumstances. [4, 13, 43]

Witnesses, for the marriage of Muslims
Hanafi — Mughniyya reports: two men, or one man and two women, meeting relevant qualifications.
Hanbali — Mughniyya reports: two qualified male Muslim witnesses in the standard position. [4]

Minimum mahr
Hanafi — Mughniyya reports: classical minimum of ten silver dirhams.
Hanbali — Mughniyya reports: no equivalent fixed monetary minimum; a small lawful and valid mahr can suffice.
Failure to specify the amount does not automatically invalidate a marriage; an appropriate entitlement may arise under the rules. [33]

Significance

Hanafi law recognises greater independent contractual capacity for an adult woman. Hanbali law treats guardianship as a legal safeguard. Both recognise the wife's entitlement to mahr, not a payment owned by her father.
Evidence anchors: Qur'an 4:4, mahr; Qur'an 4:19, kind treatment.

Marriage conditions and relatives

A wife's beneficial stipulations
Example: "Do not move me from my town" or "Do not take another wife."
Hanafi — Mughniyya reports: a bare stipulation normally does not provide the same enforceable dissolution right. Properly drafted delegated or conditional divorce is a different mechanism.
Hanbali — Mughniyya reports: recognises such valid conditions more broadly; breach can give the wife an option to seek dissolution. Not every condition is valid. [14]

Milk kinship: number of feeds
Hanafi — Mughniyya reports: a small amount of qualifying breast milk can create prohibited kinship; five feeds are not required.
Hanbali — Mughniyya reports: five qualifying feeds in the standard position.
Hanbali age limit: first two lunar years. Abu Hanifa's limit is thirty months; Abu Yusuf and Muhammad hold two years. Label this internal disagreement. [15, 16, 23]

Important agreements

Both prohibit marriage to specified close blood, marital and milk relatives. Cousins are not automatically prohibited; milk kinship or another impediment may change the case.
Both traditionally permit a Muslim man to marry a qualifying chaste Jewish or Christian woman, subject to conditions and possible discouragement. Neither traditionally permits a Muslim woman's marriage to a non-Muslim man. Both prohibit temporary mut'ah marriage. [33]

Do not invent differences: begin with Qur'an 4:23 for prohibited relatives and 5:5 for People of the Book.

Divorce: legal capacity and remedies

Spoken talaq under genuine coercion
Hanafi — Mughniyya reports: generally legally effective in classical law.
Hanbali — Mughniyya reports: qualifying coercion prevents it taking effect.
Coercion has legal conditions: ordinary family pressure or repeated requests are not automatically legal duress. [5]

Judicial dissolution for non-maintenance
Classical Hanafi — Mughniyya reports: inability to provide maintenance is not ordinarily by itself a dissolution ground in the same way.
Remedies may involve enforcing support or authorised borrowing.
Hanbali — Mughniyya reports: a wife can seek dissolution when the husband cannot provide required maintenance, subject to conditions. [6]

Terms to distinguish
Talaq: husband's divorce declaration.
Khul': release in return for agreed compensation, classically normally consensual.
Faskh: annulment/dissolution through a recognised legal ground.
Tafwid: delegation of a power of divorce; not the same as an automatic right to every requested divorce.

Why modern law may differ

A state or court can adopt rules from another school. Do not assume a Hanafi-majority country's current family statute reproduces every classical Hanafi rule.

Evidence anchors: Qur'an 4:35, arbitration; 2:229, release in kindness and compensation.
Safety: this is an academic comparison. Actual divorce wording and circumstances require qualified case-specific advice.

Divorce: maintenance and common traps

Non-pregnant irrevocable divorcee during ‘iddah
Hanafi — Mughniyya reports: generally entitled to maintenance and housing, subject to its conditions.
Hanbali — Mughniyya reports: generally neither in the standard position.
For a revocable divorce, both require support during ‘iddah under relevant conditions; pregnancy also creates provision duties. The Hanbali discussion draws on Fatimah bint Qays’s report. [7]

Khul‘: counted divorce or faskh?
Hanafi — Mughniyya reports: normally one irrevocable divorce, reducing the remaining divorce count.
Hanbali — Mughniyya reports: can be faskh, not a counted talaq, with appropriate wording and without intending talaq. Wording and intention matter; there are different narrations. Do not say every Hanbali khul‘ is automatically faskh. [25]

Triple talaq: not a simple school difference
Both mainstream classical schools generally count an explicit threefold divorce as three.
Ibn Taymiyyah and Ibn al-Qayyim defend “counts as one”; it is not the unqualified standard Hanbali ruling. [24, 47]

Other agreements
Both generally count talaq during menstruation as effective though prohibited. Witnesses are not normally a validity condition for talaq. Both commonly understand the three quru’ as menstrual periods. Ordinary anger does not automatically invalidate divorce. [5]

Distinguish: sinful conduct and legal effectiveness are different questions.

Inheritance: female family members

Start with the shared Qur'anic shares

Both: wife receives 1/4 without qualifying descendants, 1/8 with them; wives share that entitlement. A sole daughter has a 1/2 fixed share without a son; two or more share 2/3 without a son. Sons and daughters together take residue at 2:1. The whole family configuration matters. [8]

Difference 1: father and paternal grandmother
Assume these are the only relevant heirs; distribute the net estate after prior claims.
Hanafi — Mughniyya reports: father excludes his own mother, the deceased's paternal grandmother; she gets nothing.
Hanbali — Ibn Qudamah, as cited by Mughniyya: she can inherit 1/6 alongside her son; father takes the remainder. [8]

Difference 2: grandfather and full sister
Assume only a paternal grandfather and one full sister.
Abu Hanifa's rule: grandfather excludes her and takes all.
Standard Hanbali — Mughniyya reports: grandfather 2/3; sister 1/3.
Abu Yusuf and Muhammad: grandfather 2/3, sister 1/3 in this case. Do not present unanimity within Hanafi scholarship. [8]

Do not import a Ja'fari example

A daughter with a qualifying paternal uncle may take 1/2 while he takes residue in both schools. That is not a Hanafi–Hanbali contrast.
Evidence anchors: Qur'an 4:7, 4:11–12 and 4:176.
AO2: women do not always receive half a man's share; specify the relationship and surviving heirs.

4. Finance and employment

Unit 2.3 • the cleanest trade comparison

Khiyar al-majlis: cancelling before parting
Hanafi — al-Kasani/al-Marghinani: a valid sale normally becomes binding by offer and acceptance, unless another cancellation right applies. Staying together does not itself preserve a general right to change one's mind.
Hanbali — Ibn Qudamah: parties retain an option while the contracting session continues, unless waived or otherwise ended under its rules. [12]

Example: a buyer accepts a price then changes their mind before leaving. Presence in the shop alone is insufficient in Hanafi law; the Hanbali session option can allow cancellation.
Why different? Interpretation of the Hadith that parties have an option until they separate.

Debt and mortgages: shared boundaries

Both prohibit riba, fraud and unjust consumption of wealth. A higher fixed credit-sale price is not automatically the same as interest on a money loan: examine ownership, risk and the actual contract.
Do not write "Hanafis permit conventional mortgages; Hanbalis prohibit them." Attribute any contemporary necessity concession to its particular scholar and conditions.

Employment in local contexts

Analyse the service, direct involvement in prohibited transactions, mixed business, necessity and lawful alternatives. Do not claim "Hanafi permits all bank jobs" or "Hanbali prohibits every mixed-business job."
Anchors: Qur'an 4:29, mutual consent; 2:275, trade/riba; 2:280, debtor hardship; 2:282, recording debts.

5. How to answer for high marks

AO1: explain, do not merely list

For each point use: **issue > Hanafi ruling > Hanbali ruling > evidence/reason > practical consequence.**

Example: "Both schools derive purification rules from Qur'an 5:6. Hanafi law regards intention as Sunnah for wudu, whereas Hanbali law requires it. Thus physically washing the limbs need not have identical validity in both schools."

AO2: compare and judge

Use **D–S–D–J**:
• Define the precise issue or terms.
• Similarities: show shared authority and aims.
• Differences: make direct, paired comparisons.
• Judgement: answer the question's exact wording.

For a statement question: define > argument for > challenge/counterargument > weighed conclusion. Do not substitute description for evaluation.

Model judgement: "Neither school is universally stricter. Hanbali law has more obligatory wudu requirements, but allows broader prayer combination and more enforceable marriage conditions. Flexibility depends on the specific issue."

Choose relevant examples

A question on purification needs wudu comparisons, not inheritance detail. A question on female inheritance needs actual family scenarios, not a generic 2:1 slogan.

These are illustrative revision paragraphs, not examiner-certified full-mark scripts. No answer structure guarantees a particular mark.

Do not collapse the Sahibayn

1. ‘Asr begins

Abu Hanifa: twice the object’s height, in addition to the noon shadow.
Abu Yusuf and Muhammad: once its height, plus the noon shadow; this coincides with the other schools compared here. Al-Quduri names both students. [37]

2. Milk-kinship age limit

Abu Hanifa: thirty months.
Abu Yusuf and Muhammad: two lunar years.
This concerns the period in which nursing can establish marriage-prohibiting kinship, not a general instruction to delay weaning. [16]

3. Friday’s minimum congregation

Abu Hanifa and Muhammad: three qualifying men besides the imam, four total; the commonly relied-upon Hanafi count.
Abu Yusuf: two besides the imam, three total.
Source [41] quotes al-Kasani’s Bada’i al-Sana’i, prayer/Friday, 1:268. The consulted English Quduri translation groups Muhammad differently; this guide follows the cross-checked attribution, not that conflicting translation. [41]

4. Grandfather and full sister

For this exact two-heir case:
Abu Hanifa: grandfather takes all; sister excluded.
Abu Yusuf and Muhammad: grandfather 2/3, sister 1/3, agreeing with the Maliki and standard Hanbali result here. Mughniyya reports the disagreement. [8]

Marriage caution: the adult woman’s contracting capacity also has differing transmissions and qualifications. Do not claim every statement attributed to Abu Yusuf or Muhammad is identical; see the al-Marghinani/Ibn ‘Abidin discussion in [43].

Final recall: Hanafi vs Hanbali

Worship

1. Intention: Sunnah / required.
2. Sequence: Sunnah / obligatory.
3. Continuity: recommended / obligatory.
4. Head: quarter / whole.
5. Mouth, nose, ears in wudu: Sunnah / obligatory.
6. Ordinary touch: not itself a nullifier / desire matters.
7. Camel meat: no invalidation / invalidation.
8. ‘Asr: Abu Hanifa’s twice / once, plus noon shadow.
9. Combining: Hajj restriction / broader concessions.
10. Friday: 3 besides imam / standard 40 including him.
11. Friday time: post-zenith / pre-zenith permitted.

Family and transactions

12. Wali: not universally required for adult sane woman / required.
13. Witnesses: 2 men or 1 man + 2 women / 2 men.
14. Mahr: 10 dirhams / no fixed monetary minimum.
15. Beneficial stipulations: different enforceability.
16. Milk kinship: no five-feed threshold / five feeds.
17. Coerced spoken talaq: effective / qualifying duress prevents it.
18. Non-maintenance: narrower / broader dissolution remedy.
19. Non-pregnant irrevocable divorcee: support + housing / generally neither.
20. Inheritance: grandmother with father; grandfather + sister.
21. Sale-session option: not generally recognised / recognised.

Never forget: standard triple talaq is three in both; Ibn Taymiyyah’s preference is not the whole madhhab. Revisit the full qualifications, not only this shorthand.

Attribution reminder: shorthand only; use the named source and qualifications in the full topic entries. The early-disagreement audit distinguishes Abu Hanifa from the Sahibayn.

Sources and verification

Numbers in the text refer to this register. Tap a source title to open it. School manuals and comparative works are educational references, not a substitute for a personal ruling. Web sources checked 24 October 2026.

[1] Cambridge 9488 syllabus, 2024–2026: Paper 2, printed pp. 17–19

[3] Comparative fiqh: ritual purity (M. J. Mughniyya)

[4] M. J. Mughniyya reports: marriage contract and witnesses

[5] M. J. Mughniyya reports: divorce and legal capacity

[6] M. J. Mughniyya reports: judicial dissolution

[7] M. J. Mughniyya reports: maintenance after divorce

[8] M. J. Mughniyya reports: inheritance, grandfather and return

[9] Dorar comparative fiqh: combining prayers

[10] Dorar comparative fiqh: Friday prayer conditions

[11] Hanafi explanation of apparent and true combination

[12] Habib ur Rahman, Amanullah and Mohiuddin: sale-session option; cites al-Kasani/al-Marghinani, al-Hattab and Ibn Qudamah

[13] Hanafi marriage without a guardian: qualifications

[14] M. J. Mughniyya reports: conditions stipulated by a wife

Sources and verification — continued

[15] Hanafi and other views on milk kinship: number of feeds

[16] Hanafi internal disagreement on the nursing age limit

[17] Prayer times: the two shadow calculations for Asr

[18] Comparative discussion: touching a woman and wudu

[19] Comparative discussion: touching the private organ

[20] Al-Hajjawi, Zad al-Mustaqni‘, obligatory wudu parts, quoted with Ibn ‘Uthaymin’s commentary

[21] Hanbali-associated methodology and usable weak reports

[23] Hanbali nursing conditions

[24] Triple divorce: majority position distinguished from alternatives

[25] M. J. Mughniyya reports: khul and its wording

[26] Mohamed Baianonie, Differences in Fiqh Made Easy: comparative purification/prayer handbook

[27] ‘Abd al-Bari al-‘Ashmawi, Matn al-‘Ashmawiyyah: Maliki purification and prayer, with translator’s notes

[33] M. J. Mughniyya reports: minimum mahr and kinship

Sources and verification — continued

[34] Muhammad al-Mukhtar al-Salami: Al-Qiyas (Analogy) and its Modern Application; comparative causes of riba

[36] Hanafi non-nullification by touching the private parts

[37] Al-Quduri, Mukhtasar: purification and prayer; English translation (Friday attribution cross-checked against [41])

[38] Ibn Qudamah, Umdat al-Fiqh: ablution and its nullifiers (one selected Hanbali account, not every later standard rule)

[39] Ibn Abi Zayd al-Qayrawani, al-Risala: purification text; prayer-time commentary separately linked at [49]

[40] Cambridge June 2024 Paper 22 mark scheme: generic principles and Q4, Ibn Taymiyyah and Salafi positions

[41] Nabil Ahmed, reviewed by Abdul Waheed: Friday minimum; quotes al-Kasani, Bada'i al-Sana'i, prayer/Friday, 1:268

[42] Hanbali ear-wiping alternatives: quotes Ibn Qudamah, al-Mughni 1:90, and al-Khallal's reports from Ahmad

[43] Female agency in Hanafi marriage: al-Marghinani and Ibn Abidin, Radd al-Muhtar; historical qualifications

[44] Muhammad Zahid al-Kawthari: name and Hanafi affiliation (biographical identification only)

[45] Ibn Kathir: Shafi'i training and scholarly biography (identification only)

[46] 'Izz al-Din ibn 'Abd al-Salam: Shafi'i affiliation (biographical identification only)

[47] Triple divorce: cites Ibn al-Qayyim, Zad al-Ma'ad, defending the one-divorce position; distinguishes disputed early attributions

Sources and verification — continued

[48] Hanbali ear-wiping report: Ibn Hubayrah transmits obligation from Ahmad through Harb

[49] Al-Risala, chapter 8, with commentary: beginning of the prayer time preferred, with qualifications

Editorial note: classical school positions, internal alternatives and modern statutes are distinguished where material. Syllabus coverage is defined by Cambridge [1], not by every topic discussed in a fiqh reference. Examples assume the stated heirs/circumstances and omit unrelated complexities.